

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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Terrence Rosenthal, Leesha Bell and Angelica Weldon, :

Index Number:
Date Purchased:
Date Filed:

Plaintiffs : SUMMONS

-against- :

City of New York, New York City Police Department, :
New York City Mayor Eric Adams, Advisor to Eric Adams, :
Office of the Mayor, Timothy Pearson, Tax # 874612, :
Detective Joseph Raffaele, Tax # 933220 of :
Intel-Municipal Security Section, Police Officer Steven :
Vitucci, Shield 8837 of the Midtown South Precinct and :
New York City Police Officers John Doe, :

Defendants :

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TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to Answer the Verified Complaint in this action and serve a copy of your answer, or if the Verified Complaint is not served with this Summons to serve a notice of Appearance on the Plaintiffs attorney within twenty (20) days after the service of this Summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this Summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Verified Complaint.

The basis of venue designated is that the causes of action arose in New York County.

Dated: October 5, 2024
BRONX, NY

Yours, etc.,

Jason Steinberger

LAW OFFICES OF JASON A. STEINBERGER, LLC
Attorney for Plaintiffs
888 Grand Concourse, Suite 1H
Bronx, NY 10451
(646) 256-1007

To: City of New York

New York City Police Department

New York City Mayor Eric Adams

Advisor to Eric Adams, Office of the Mayor, Timothy Pearson, Tax # 874612

Detective Joseph Raffaele, Tax # 933220 of Intel-Municipal Security Section

Police Officer Steven Vitucci, Shield 8837 of the Midtown South Precinct

New York City Police Officers John Doe

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
Terrence Rosenthal, Leeshah Bell and Angelica Weldon, :

Plaintiffs

VERIFIED COMPLAINT

-against- :

City of New York, New York City Police Department, :
New York City Mayor Eric Adams, Advisor to Eric Adams, :
Office of the Mayor, Timothy Pearson, Tax # 874612, :
Detective Joseph Raffaele, Tax # 933220 of :
Intel-Municipal Security Section, Police Officer Steven :
Vitucci, Shield 8837 of the Midtown South Precinct and :
New York City Police Officers John Doe, :

Defendants :

-----X

Plaintiff, by and through his attorney, JASON A. STEINBERGER, Esq, for his complaint,
alleges upon information and belief as follows:

STATEMENT OF FACTS

1. That at all times hereinafter mentioned, Plaintiff Terrence Rosenthal, (hereinafter referred to as "ROSENTHAL") is a resident of Bronx County, State of New York.
2. That at all times hereinafter mentioned, Plaintiff Leeshah Bell, (hereinafter referred to as "BELL") is a resident of Hudson County, State of New Jersey.
3. That at all times hereinafter mentioned, Plaintiff Angelica Weldon (hereinafter referred to as "WELDON") is a resident of Bronx County, State of New York.
4. That at all times hereinafter mentioned, Mayor Eric Adams (hereinafter referred to as "ADAMS") was the Mayor of the City of New York and as such an employee of the City of the New York.

5. That at all times hereinafter mentioned, Advisor to Eric Adams, Office of the Mayor, Timothy Pearson Tax 874612 (hereinafter referred to as “PEARSON”) was an employee of the City of New York, serving as an advisor to the Office of the Mayor, Eric Adams.
6. That at all times hereinafter mentioned, Detective Joseph Raffaele, Tax # 933220 of Intel-Municipal Security Section (hereinafter referred to as “RAFFAELE”) was employed by the New York City Police Department.
7. That at all times hereinafter mentioned, Police Officer Steven Vitucci, Shield 8837 of the Midtown South Precinct (hereinafter referred to as “VITUCCI”) was employed by the New York City Police Department.
8. That at all times hereinafter mentioned, the New York City Police Officers John Doe, the Officers involved in the arrest of ROSENTHAL and BELL (hereinafter referred to as “DOES”) were employed by the New York City Police Department.
9. That at all times hereinafter, City of New York, New York City Police Department, New York City Mayor Eric Adams, Advisor to Eric Adams, Office of the Mayor, Timothy Pearson, Tax # 874612, Detective Joseph Raffaele, Tax # 933220 of Intel-Municipal Security Section, Police Officer Steven Vitucci, Shield 8837 of the Midtown South Precinct and New York City Police Officers John Doe shall be referred to as “DEFENDANTS.”
10. That at all times hereinafter mentioned, Defendant City of New York, is a municipal corporation organized and existing under the laws of the State of New York, with a principal place of business located at 1 Centre Street, County of New York, State of New York.
11. That at all times hereinafter mentioned, Defendant New York City Police Department, is an agency created and maintained by the above municipal government.

12. That on or about October 26, 2023, notice required by Municipal Law 50-E was given to City of New York, by personal service as to ROSENTHAL. Said notice set forth the facts underlying ROSENTHAL's claim against DEFENDANTS, its agents and employees. To date, no answer has been received by ROSENTHAL and no compensation has been offered by the City of New York.

13. That on or about October 26, 2023, notice required by Municipal Law 50-E was given to City of New York, by personal service as to BELL. Said notice set forth the facts underlying BELL's claim against DEFENDANTS, its agents and employees. To date, no answer has been received by BELL and no compensation has been offered by the City of New York.

14. That on or about November 6, 2023, notice required by Municipal Law 50-E was given to City of New York, by personal service as to Plaintiff WELDON. Said notice set forth the facts underlying WELDON's claim against DEFENDANTS, its agents and employees. To date, no answer has been received by WELDON and no compensation has been offered by the City of New York.

15. That on or about February 13, 2024, a hearing required by Municipal Law 50-H was conducted as to ROSENTHAL. At said hearing, ROSENTHAL testified and set forth the facts underlying ROSENTHAL's claim against DEFENDANTS, its agents and employees. To date, no answer has been received by ROSENTHAL and no compensation has been offered by the City of New York in response to this claim, and more than thirty (30) days have elapsed.

16. That on or about February 13, 2024, a hearing required by Municipal Law 50-H was conducted as to BELL. At said hearing, BELL testified and set forth the facts underlying BELL's claim against DEFENDANTS, its agents and employees. To date, no answer has been

received by BELL and no compensation has been offered by the City of New York in response to this claim, and more than thirty (30) days have elapsed.

17. That on or about February 13, 2024, a hearing required by Municipal Law 50-H was conducted as to WELDON. At said hearing, WELDON testified and set forth the facts underlying WELDON's claim against DEFENDANTS, its agents and employees. To date, no answer has been received by WELDON and no compensation has been offered by the City of New York in response to this claim, and more than thirty (30) days have elapsed.

18. That all conditions and requirements precedent to the commencement of this action have been complied with.

19. That this action falls within one or more of the exceptions set forth in CPLR 1602.

20. Pursuant to CPLR Section 1602(2)(iv), DEFENDANTS are jointly and severally liable for all of Plaintiffs' damages, including but not limited to Plaintiffs' non-economic loss, irrespective of the provisions of the CPLR Section 1601, by reason of the fact that DEFENDANTS owed the Plaintiffs a non-delegable duty of care.

21. Pursuant to CPLR Section 1602(7), DEFENDANTS are jointly and severally liable for all of Plaintiffs' damages, including but not limited to Plaintiffs' non-economic loss, irrespective of the provisions of the CPLR Section 1601, by reason of the fact that DEFENDANTS acted with reckless disregard of the safety of others.

22. That at all times on October 17, 2023, Arrow Security, a security company was contracted by the City of New York to provide security for a New York City shelter located at 320 West 31 Street, New York, New York.

23. That at all times on October 17, 2023, ROSENTHAL, BELL and WELDON were employees of Arrow Security, a security company.

24. That at all times on October 17, 2023, ROSENTHAL, BELL and WELDON were each wearing clothing identifying them as Arrow Security employees.

25. That at all times on October 17, 2023, all persons looking to enter 320 West 31 Street, New York, New York were required to show identification to Arrow Security employees to enter.

26. That on or about October 17, 2023 at approximately 4:00 PM in the vicinity of 320 West 31 Street, New York, New York PEARSON and RAFFAELE entered the above location without providing identification or identifying who each was.

27. That when ROSENTHAL requested that PEARSON and RAFFAELE provide identification before entering, PEARSON claimed that he did not need to show identification while RAFFAELE, remained silent.

28. That PEARSON with both of his hands, shoved ROSENTHAL in the chest, causing ROSENTHAL to experience substantial pain to his chest, lose his balance and stumble several feet.

29. That at no time prior to being shoved did ROSENTHAL subject PEARSON to any physical contact.

30. That at no time after PEARSON shoved ROSENTHAL did ROSENTHAL subject PEARSON to any physical contact.

31. That at no time, did ROSENTHAL push PEARSON away from the above location and out the door of the location.

32. That after PEARSON shoved ROSENTHAL, BELL approached PEARSON and RAFFAELLE and requested that they each show identification.

33. That PEARSON then, with both hands, grabbed BELL by her neck and squeezed her neck with his hands.

34. While PEARSON had his hands wrapped around BELL's neck, he shoved her backwards causing BELL to fall against a counter causing her to experience substantial pain to her neck and back.

35. That PEARSON then stated in sum and substance: BITCH, DO YOU KNOW WHO I AM?

36. That at no time prior to being shoved did BELL subject PEARSON to any physical contact.

37. That at no time after PEARSON shoved BELL did BELL subject PEARSON to any physical contact.

38. That then PEARSON shoved WELDON with his body and arms causing her to be thrown against a wall and onto the floor.

39. That as a result of PEARSON's actions WELDON suffered substantial pain to her right shoulder, knees and back.

40. That at no time prior to being thrown against the wall, did WELDON subject PEARSON to any physical contact.

41. That at no time after being thrown against the wall, did WELDON subject PEARSON to any physical contact.

42. That PEARSON, RAFAELLE, VITUCCI and DOES stopped ROSENTHAL and threw him to the ground causing him to experience substantial pain to his back and knees.

43. That ROSENTHAL was handcuffed and arrested.

44. That at no time did ROSENTHAL commit any unlawful or illegal act.

45. That at no time did ROSENTHAL subject anyone, including PEARSON, to any physical force, nor did he threaten to use physical force against anyone including PEARSON.

46. That at no time did ROSENTHAL obstruct any governmental administration.

47. That at no time did ROSENTHAL prevent or attempt to prevent any public servant from performing an official function by intimidation, physical force or interference by any independent unlawful act.

48. That PEARSON, RAFAELLE and DOES stopped, handcuffed and arrested BELL.

49. That at no time did BELL commit any unlawful or illegal act.

50. That at no time did BELL act in a disorderly manner.

51. That at no time did BELL subject anyone, including RAFAELLE to any physical contact.

52. That after ROSENTHAL was arrested, he was transported to the Midtown South Precinct.

53. That ROSENTHAL was subjected to search of his body.

54. That while ROSENTHAL was inside of the Midtown South Precinct, he was held in a holding cell for several hours.

55. That after several hours at the Midtown South Police Precinct ROSENTHAL was transported to New York County Central Booking located at 100 Centre Street, New York, New York.

56. That on or about October 19, 2023, ROSENTHAL was arraigned on docket CR-030017-23NY, charging him with Obstructing Governmental Administration in the Second Degree, a misdemeanor offense and Harassment in the Second Degree, a violation.

57. That at the time of the arraignment, ROSENTHAL was released on his own recognizance and ordered to return to court.

58. That on or about October 27, 2023, upon application of the Office of the New York County District Attorney, the case against ROSENTHAL was dismissed.

59. That after BELL was arrested, she was transported to the Midtown South Precinct.

60. That BELL was subjected to a search of her body.

61. That while BELL was inside of the Midtown South Precinct, she was held in a holding cell for several hours.

62. That after several hours at the Midtown South Police Precinct BELL was issued a summons charging her with Disorderly Conduct, a violation, requiring her to appear in New York County Criminal Court and released from custody.

63. That on or about November 2, 2023, BELL appeared in New York County Criminal Court whereupon the summons issued to her was dismissed by Honorable Michael Ryan.

64. That as a result of the injuries ROSENTHAL sustained to his back and knees, he sought medical attention to treat the substantial pain.

65. That as a result of the injuries BELL sustained to her neck and back, she sought medical attention to treat the substantial pain.

66. That as a result of the injuries WELDON sustained to her right shoulder, back and knees, she sought medical attention to treat the substantial pain.

AS AND FOR A FIRST CAUSE OF ACTION AGAINST DEFENDANTS

67. ROSENTHAL repeats, reiterates and realleges the allegations contained in paragraphs 1 through 66, as if more fully stated herein at length.

68. That DEFENDANTS acted with actual malice toward ROSENTHAL and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff.

69. That as a result of the actions of DEFENDANTS, ROSENTHAL was seriously injured due to the intentional manner in which DEFENDANTS, their agents, servants, employees and/or licensees treated ROSENTHAL and he was wounded, suffered, still suffers, and will continue to suffer for some time great physical pain and great bodily injuries and became sick, sore, lame and disabled and so remained for a considerable length of time.

70. That the actions of the DEFENDANTS constituted unreasonable deprivation of liberty without due process of law.

71. That as a result of the actions by DEFENDANTS, ROSENTHAL was traumatized and fears his physical safety when he sees and encounters members of the New York City Police Department from that day and onward.

72. That as a result of the DEFENDANTS' actions, ROSENTHAL has been unable to sleep.

73. That as a result of the DEFENDANTS' actions ROSENTHAL sustained damage to his person in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A SECOND CAUSE OF ACTION AGAINST DEFENDANTS

74. ROSENTHAL repeats, reiterates and realleges the allegations contained in paragraphs 1 through 73, as if more fully stated herein at length.

75. The intentional verbal abuse, physical abuse, false arrest and false imprisonment by DEFENDANTS violated the rights of the ROSENTHAL as guaranteed by the Fourth, Fifth and

Eighth Amendments to the United States Constitution, as well as the corresponding sections of the New York State Constitution, for which DEFENDANTS are individually liable.

76. DEFENDANTS having no lawful authority to arrest ROSENTHAL, did, nevertheless, unlawfully arrest ROSENTHAL with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus, ROSENTHAL is entitled to both compensatory and exemplary damages.

AS AND FOR A THIRD CAUSE OF ACTION AGAINST DEFENDANTS

77. ROSENTHAL repeats, reiterates and realleges the allegations contained in paragraphs 1 through 76, as if more fully stated herein at length.

78. DEFENDANTS conspired to violate ROSENTHAL's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which DEFENDANTS are individually liable. Thus, ROSENTHAL is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR A FOURTH CAUSE OF ACTION AGAINST DEFENDANTS

79. ROSENTHAL repeats, reiterates and realleges the allegations contained in paragraphs 1 through 78, as if more fully stated herein at length.

80. ROSENTHAL was verbally abused, physically abused, falsely arrested, falsely imprisoned and maliciously prosecuted by DEFENDANTS in a manner that was extreme, outrageous and unjustified and caused ROSENTHAL to suffer physical and severe emotional distress for which the DEFENDANTS are individually liable. The verbal abuse, false arrest, false imprisonment and malicious prosecution of ROSENTHAL by DEFENDANTS were

unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of ROSENTHAL. ROSENTHAL is thus entitled to compensatory and exemplary damages.

81. That during the pendency of the case, DEFENDANTS maliciously prosecuted ROSENTHAL by continuing to cooperate in a prosecution when ROSENTHAL should never have been arrested. ROSENTHAL is thus entitled to compensatory and exemplary damages.

82. That during the pendency of the case, DEFENDANTS maliciously prosecuted ROSENTHAL by claiming that ROSENTHAL refused to permit PEARSON and RAFFEALE into the above location by means of subjecting PEARSON to physical force when DEFENDANTS knew that ROSENTHAL did not engage in any unlawful or illegal behavior.

**AS AND FOR A FIFTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK,
NEW YORK CITY POLICE DEPARTMENT AND ADAMS**

83. ROSENTHAL repeats, reiterates and realleges the allegations contained in paragraphs 1 through 82, as if more fully stated herein at length.

84. At all times pertinent hereto, PEARSON was acting in the scope of his employment as an advisor to ADAMS and the City of New York.

85. At all times pertinent hereto, RAFFAELLE, VITUCCI and DOES were acting within the scope of their employment as officers of the New York City Police Department and City of New York.

86. That City of New York, New York City Police Department and ADAMS are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that PEARSON committed within the scope of their employment.

87. That City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that RAFFAELLE, VITUCCI and DOES committed within the scope of their employment.

**AS AND FOR A SIXTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK,
NEW YORK CITY POLICE DEPARTMENT AND ADAMS**

88. ROSENTHAL repeats, reiterates and realleges the allegations contained in paragraphs 1 through 87, as if more fully stated herein at length.

89. That the City of New York, New York City Police Department and ADAMS continued to employ employees they knew to be unfit to hold employment constituting a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including ROSENTHAL. ROSENTHAL is thus entitled to compensatory exemplary damages.

90. The City of New York, New York City Police Department and ADAMS' failure to provide adequate training and supervision to its police officers constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including ROSENTHAL. ROSENTHAL is thus entitled to compensatory exemplary damages.

91. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention and physical abuse of ROSENTHAL.

92. The City of New York, New York City Police Department and ADAMS knew that PEARSON was the subject of six (6) Civilian Complaint Review Board Complaints while serving as a New York City Police Officer and despite such, they continued to employ him

93. The City of New York, New York City Police Department and ADAMS knew that PEARSON was on the Adverse Credibility List, a list compiled by the Offices of the District Attorney in each of the boroughs of New York City of officers whose credibility has been challenged and despite such they continued to employ him.

94. The City of New York, New York City Police Department and ADAMS knew that PEARSON was alleged to have sexually abused a New York City Police Sergeant and retaliating against her for reporting the abuse, and despite such they continued to employ him.

95. The City of New York and New York City Police Department knew that RAFFAELE was the subject of one (1) Civilian Complaint Review Board Complaint and despite such, they continued to employ him.

96. The City of New York and New York City Police Department knew that the one Civilian Complaint Review Board complaint, complaint # 200913748, was that he issued a retaliatory summons and despite such, they continued to employ him.

AS AND FOR A SEVENTH CAUSE OF ACTION AGAINST DEFENDANTS

97. BELL repeats, reiterates and realleges the allegations contained in paragraphs 1 through 96 as if more fully stated herein at length.

98. That DEFENDANTS acted with actual malice toward BELL and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the BELL.

99. That the actions of the DEFENDANTS constituted unreasonable deprivation of liberty without due process of law.

100. That as a result of the actions of DEFENDANTS, BELL was seriously injured due to the intentional manner in which DEFENDANTS, their agents, servants, employees and/or licensees

treated BELL and she was wounded, suffered, still suffers, and will continue to suffer for some time great physical pain and great bodily injuries and became sick, sore, lame and disabled and so remained for a considerable length of time.

101. That as a result of the actions by DEFENDANTS, BELL was traumatized and fears for her physical safety when she sees and encounter members of the New York City Police Department from that day and onward.

102. That as a result of the DEFENDANTS' actions, BELL has been unable to sleep.

103. That as a result of the DEFENDANTS' actions BELL sustained damage to her person in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR AN EIGHTH CAUSE OF ACTION AGAINST DEFENDANTS

104. BELL repeats, reiterates and realleges the allegations contained in paragraphs 1 through 103, as if more fully stated herein at length.

105. The intentional verbal abuse, physical abuse, false arrest and false imprisonment by DEFENDANTS violated the rights of BELL as guaranteed by the Fourth, Fifth and Eighth Amendments to the Unites States Constitution, as well as the corresponding sections of the New York State Constitution, for which DEFENDANTS are individually liable.

106. DEFENDANTS having no lawful authority to arrest BELL, did, nevertheless, unlawfully arrest BELL with actual malice toward her and with willful and wanton indifference to and deliberate disregard for her constitutional rights. Thus, BELL is entitled to both compensatory and exemplary damages.

AS AND FOR A NINTH CAUSE OF ACTION AGAINST DEFENDANTS

107. BELL repeats, reiterates and realleges the allegations contained in paragraphs 1 through 106 as if more fully stated herein at length.

108. DEFENDANTS conspired to violate BELL's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which DEFENDANTS are individually liable. Thus, BELL is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR A TENTH CAUSE OF ACTION AGAINST DEFENDANTS

109. BELL repeats, reiterates and realleges the allegations contained in paragraphs 1 through 108, as if more fully stated herein at length.

110. BELL was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by DEFENDANTS in a manner that was extreme, outrageous and unjustified and caused BELL to suffer physical and severe emotional distress for which the DEFENDANTS are individually liable. The verbal abuse, false arrest, false imprisonment and malicious prosecution on and of BELL by DEFENDANTS were unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of BELL. BELL is thus entitled to compensatory and exemplary damages.

111. That during the pendency of the case, DEFENDANTS maliciously prosecuted BELL by continuing to cooperate in a prosecution when BELL should never have been arrested. BELL is thus entitled to compensatory and exemplary damages.

112. That during the pendency of the case, DEFENDANTS maliciously prosecuted BELL by claiming that Plaintiff acted disorderly in that she subjected RAFAELLE to physical contact and prevented him from entering the above location when they knew BELL did not.

**AS AND FOR AN ELEVENTH CAUSE OF ACTION AGAINST CITY OF NEW YORK,
NEW YORK CITY POLICE DEPARTMENT AND ADAMS**

113. BELL repeats, reiterates and realleges the allegations contained in paragraphs 1 through 112, as if more fully stated herein at length.

114. At all times pertinent hereto, PEARSON was acting in the scope of his employment as an advisor to ADAMS and the City of New York.

115. At all times pertinent hereto, RAFFAELLE, VITUCCI and DOES were acting within the scope of their employment as officers of the New York City Police Department and City of New York.

116. That City of New York, New York City Police Department and ADAMS are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that PEARSON committed within the scope of their employment.

117. That City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that RAFFAELLE, VITUCCI and DOES committed within the scope of their employment.

**AS AND FOR A TWELFTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK,
NEW YORK CITY POLICE DEPARTMENT AND ADAMS**

118. BELL repeats, reiterates and realleges the allegations contained in paragraphs 1 through 117, as if more fully stated herein at length.

119. That the City of New York, New York City Police Department and ADAMS continued to employ employees they knew to be unfit to hold employment constituting a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including BELL. BELL is thus entitled to compensatory exemplary damages.

120. The City of New York, New York City Police Department and ADAMS' failure to provide adequate training and supervision to its police officers constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including BELL. BELL is thus entitled to compensatory exemplary damages.

121. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention and physical abuse of BELL.

122. The City of New York, New York City Police Department and ADAMS knew that PEARSON was the subject of six (6) Civilian Complaint Review Board Complaints while serving as New York City Police Officer and despite such, they continued to employ him

123. The City of New York, New York City Police Department and ADAMS knew that PEARSON was on the Adverse Credibility List, a list compiled by the Offices of the District Attorney in each of the boroughs of New York City of officers whose credibility has been challenged and despite such they continued to employ him.

124. The City of New York, New York City Police Department and ADAMS knew that PEARSON was alleged to have sexually abused a New York City Police Sergeant and retaliating against her for reporting the abuse, and despite such they continued to employ him.

125. The City of New York and New York City Police Department knew that RAFFAELE was the subject of one (1) Civilian Complaint Review Board Complaint and despite such, they continued to employ him.

126. The City of New York and New York City Police Department knew that the one Civilian Complaint Review Board complaint, complaint # 200913748, was that he issued a retaliatory summons and despite such, they continued to employ him.

AS AND FOR AN THIRTEENTH CAUSE OF ACTION AS DEFENDANTS

127. WELDON repeats, reiterates and realleges the allegations contained in paragraphs 1 through 126 as if more fully stated herein at length.

128. That DEFENDANTS acted with actual malice toward WELDON and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the WELDON.

129. That as a result of the actions of DEFENDANTS, WELDON was seriously injured due to the intentional manner in which DEFENDANTS, their agents, servants, employees and/or licensees treated WELDON and she was wounded, suffered, still suffers, and will continue to suffer for some time great physical pain and great bodily injuries and became sick, sore, lame and disabled and so remained for a considerable length of time.

130. That as a result of the actions by DEFENDANTS, WELDON was traumatized and fears for her physical safety when she sees and encounter members of the New York City Police Department from that day and onward.

131. That as a result of the DEFENDANTS' actions, WELDON has been unable to sleep.

132. That as a result of the Defendants' actions WELDON sustained damage to her person in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A FOURTEENTH CAUSE OF ACTION AGAINST DEFENDANTS

133. WELDON repeats, reiterates and realleges the allegations contained in paragraphs 1 through 132, as if more fully stated herein at length.

134. The intentional physical abuse by DEFENDANTS violated the rights of WELDON as guaranteed by the Fourth, Fifth and Eighth Amendments to the United States Constitution, as well as the corresponding sections of the New York State Constitution, for which DEFENDANTS are individually liable.

135. DEFENDANTS having no lawful authority to subject WELDON to physical abuse did nevertheless, do so with actual malice toward her and with willful and wanton indifference to and deliberate disregard for her constitutional rights. Thus, WELDON is entitled to both compensatory and exemplary damages.

AS AND FOR A FIFTEENTH CAUSE OF ACTION AGAINST DEFENDANTS

136. WELDON repeats, reiterates and realleges the allegations contained in paragraphs 1 through 135, as if more fully stated herein at length.

137. DEFENDANTS conspired to violate WELDON's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which DEFENDANTS are individually liable. Thus, WELDON is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR A SIXTEENTH CAUSE OF ACTION AGAINST DEFENDANTS

138. WELDON repeats, reiterates and realleges the allegations contained in paragraphs 1 through 137, as if more fully stated herein at length.

139. WELDON was physically abused in a manner that was extreme, outrageous and unjustified and caused WELDON to suffer physical and severe emotional distress for which the DEFENDANTS are individually liable. The verbal abuse and physical abuse on and of WELDON by DEFENDANTS was unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of WELDON. WELDON is thus entitled to compensatory and exemplary damages.

AS AND FOR A SEVENTEENTH CAUSE OF ACTION AGAINST CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT AND ADAMS

140. WELDON repeats, reiterates and realleges the allegations contained in paragraphs 1 through 139, as if more fully stated herein at length.

141. At all times pertinent hereto, PEARSON was acting in the scope of his employment as an advisor to ADAMS and the City of New York.

142. At all times pertinent hereto, RAFFAELLE, VITUCCI and DOES were acting within the scope of their employment as officers of the New York City Police Department and City of New York.

143. That City of New York, New York City Police Department and ADAMS are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that PEARSON committed within the scope of his employment.

144. That City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that RAFFAELLE, VITUCCI and DOES committed within the scope of their employment.

AS AND FOR AN EIGHTEENTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT AND ADAMS

145. WELDON repeats, reiterates and realleges the allegations contained in paragraphs 1 through 144, as if more fully stated herein at length.

146. The City of New York, New York City Police Department and ADAMS failure to provide adequate training and supervision to its police officers constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including WELDON. WELDON is thus entitled to compensatory exemplary damages.

147. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the physical abuse of WELDON.

148. The City of New York, New York City Police Department and ADAMS knew that PEARSON was the subject of six (6) Civilian Complaint Review Board Complaints while serving as New York City Police Officer and despite such, they continued to employ him

149. The City of New York, New York City Police Department and ADAMS knew that PEARSON was on the Adverse Credibility List, a list compiled by the Offices of the District Attorney in each of the boroughs of New York City of officers whose credibility has been challenged and despite such they continued to employ him.

150. The City of New York, New York City Police Department and ADAMS knew that PEARSON was alleged to have sexually abused a New York City Police Sergeant and retaliating against her for reporting the abuse, and despite such they continued to employ him.

151. The City of New York and New York City Police Department knew that RAFFAELE was the subject of one (1) Civilian Complaint Review Board Complaint and despite such, they continued to employ him.

152. The City of New York and New York City Police Department knew that the one Civilian Complaint Review Board complaint, complaint # 200913748, was that he issued a retaliatory summons and despite such, they continued to employ him.

WHEREFORE, Plaintiffs each demand judgment against the DEFENDANTS as follows:

On the first cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the second cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this Court and in excess of all inferior courts owing to the willful and wanton nature of DEFENDANTS actions;

On the third cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this Court and in excess of all inferior courts owing to the willful and wanton nature of DEFENDANTS actions;

On the fourth cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this

Court and in excess of all inferior courts owing to the wanton and willful nature of the DEFENDANTS actions;

On the fifth cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this Court and in excess of all inferior courts owing to the willful and wanton nature of DEFENDANTS actions;

On the sixth cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this Court and in excess of all inferior court;

On the seventh cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the eighth cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this Court and in excess of all inferior courts owing to the willful and wanton nature of DEFENDANTS actions;

On the ninth cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this Court and in excess of all inferior courts owing to the willful and wanton nature of DEFENDANTS actions;

On the tenth cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this Court and in excess of all inferior courts owing to the willful and wanton nature of DEFENDANTS actions;

On the eleventh cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this Court and in excess of all inferior courts owing to the willful and wanton nature of DEFENDANTS actions;

On the twelfth cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this Court and in excess of all inferior courts;

On the thirteenth cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the fourteenth cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this Court and in excess of all inferior courts;

On the fifteenth cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this Court and in excess of all inferior courts;

On the sixteenth cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this Court and in excess of all inferior courts owing to the willful and wanton nature of DEFENDANTS actions.

On the seventeenth cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this Court and in excess of all inferior courts owing to the willful and wanton nature of DEFENDANTS actions.

On the eighteenth cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this Court and in excess of all inferior courts owing to the wanton and willful nature of the DEFENDANTS actions;

Law Offices of Jason A. Steinberger, LLC

Jason Steinberger

Jason A. Steinberger, Esq.
Attorney for Plaintiffs
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Bronx, NY 10451
(646) 256-1007

ATTORNEY VERIFICATION

STATE OF NEW YORK: COUNTY OF NEW YORK

The undersigned, an attorney admitted to practice in the State of New York, under penalties of perjury, affirms the following to be true: Affirmant has read the foregoing Complaint and the contents thereof ; the same is true to affirmant's own knowledge, except as to matters therein stated to be alleged on information and belief and as to those matters affirmant believes it to be true; and the reason this verification is made by affirmant and not by the plaintiff is because the plaintiff is not within the county in which your affirmant maintains his principal office. The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are communications with the plaintiff, review of records and documents within affirmant's possession.

Affirmed: October 5, 2024

Jason Steinberger
Jason A. Steinberger